

		the court itself, so that the records will conform to and speak the truth”].) Where a “clerical error” is shown, the judgment is corrected nunc pro tunc— i.e., the correction dates back to when the judgment was entered. (Ames v. Paley (2001) 89 Cal.App.4th 668, 673; Bell v. Farmers Ins. Exch. (2006) 135 Cal.App.4th 1138, 1144.) Here, Plaintiff moves to amend or correct the judgment to reflect the correct total amount of judgment. In essence, the total judgment amount was a mathematical mistake and the correct total amount should be \$149,857.67, not \$135,531.67. The incorrect total is nothing more than a clerical mistake and therefore, the motion should be granted, provided Plaintiff can show proper service of the motion on Defendant. If Plaintiff cannot establish proper service on Defendant Gabriel Marcelo Pascual dba Central Auto Wholesale on July 12, 2023, the motion is CONTINUED to 11/2/23 at 2PM. Plaintiff is ORDERED to give notice of the continued hearing date, as well as the original notice, motion and all supporting documents within 5 days of this ruling and file a POS re: same not later than 7 days before the continued hearing.
2	American Express National Bank vs. White 2019-01086058	Plaintiff American Express National Bank Motion to Vacate Plaintiff American Express National Bank’s unopposed Motion to Vacate The Conditional Dismissal and for Entry of Judgment Pursuant to CCP 664.6 is GRANTED. In January of 2020, the parties entered in a binding Settlement Agreement which was filed with the court and the court dismissed the case, while retaining jurisdiction pursuant to CCP § 664.6. (ROA 47 & 45; Decl. of Dyle, Ex. A.) Pursuant to the Stipulation, Defendant agreed that she owed \$27,465.64 to Defendant. Should she default on the payments set forth in the Stipulation, Plaintiff was entitled to judgment against Defendant in said amount in addition to costs.

		However, Defendant would be entitled to receive credit for any payments made. Defendant has made payments totaling \$1,200.00 and has defaulted on payments. Pursuant to the Stipulation, Plaintiff sent a cure letter to Defendant on March 10, 2021 and Defendant has not cured her default. Based upon the foregoing, the motion is granted. The dismissal ordered on 1/30/20 is VACATED. Judgment in the amount of \$26,828.64 (\$27,465.64 plus costs of \$563, less credits of \$1,200 in payments made) is entered. Plaintiff to submit a proposed judgment. Plaintiff to give notice.
3	C4 Distribution Co. LLC vs. Spark Enterprises, LLC 2023-01328541	Petitioner C4 Distribution Co. LLC Petition to Confirm Arbitration Award Before the court is Petitioner C4 Distribution Co. LLC's Amended Petition to confirm the May 24, 2023 Arbitration Award against Claimants Spark Enterprises, LLC and RD Lynwood issued by (Ret.) Judge Sundvold. The Petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (CCP § 1285.) "A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based <i>shall</i> be served in the manner provided in the arbitration agreement for the service of such petition and notice." (CCP § 1290.4 (a) (emphasis added).) If the agreement does not provide the manner in which service of the petition and notice must be made, and the person to be served has previously appeared in the proceeding or has previously been served, service must be made in the manner provided generally for notices and service of papers. (Civ. Proc. Code, § 1290.4, subd. (c).)